

amount of fees, \$23,035, is reasonable, some further reductions in fees are warranted.

Here, Defendant's counsel spent only 18.8 hours at \$650.00 per hour (\$12,200). Given the complexity of an Anti-SLAPP motion, this expenditure is valid. However, the Court finds that paralegals and law clerks could have achieved some additional efficiencies in the 61.8 hours devoted to reviewing the family law files and in preparing the initial drafts of the Anti-SLAPP motion. As such, the Court finds that 50, instead of 61.8, hours is reasonable. Accordingly, the amount of hours for legal assistance will be reduced from 61.8 hours to 50 hours. At \$175 per hour, the reasonable amount of fees for this work should be \$8,750.

Therefore, the Court finds that total fees (\$12,200 + \$8,750) in the amount of \$20,950 is reasonable. The Court also finds that costs incurred in the amount of \$258.22 is reasonable.

Ruling

1. Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") Motion for Attorney's fees & Costs against Plaintiff Christopher Sears PhD ("Plaintiff" or "Sears") is **granted** as set forth herein.
2. Plaintiff shall pay the amount of \$20,950 to Defendant's Counsel no later than thirty (30) days from the date of this order. Failure to pay this amount may result in the Court considering terminating sanctions or issue sanctions.
3. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching the tentative ruling, no later than five (5) days from the date of this hearing.

13. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a demurrer by General Motors, LLC to Plaintiff's complaint. Also before the Court is a motion to strike portions of the complaint. For the reasons set forth, hearing on the demurrer and motion to strike is continued to **9:00 a.m. on March 18, 2026** for the parties to meet and confer under Code of Civil Procedure sections 430.41(a) and 435.5(a). The parties shall meet and confer **by March 4, 2026**, and defendant shall file the required "meet and confer" declarations showing compliance with Code of Civil Procedure sections 430.41(a) and 435.5(a) **by March 9, 2026**.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone prior to filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. The statute requires the meet and confer to occur "at least 5 days before the date the responsive pleading is due." (Code Civ. Proc. § 430.41(b) [emphasis added].) The statute continues: "If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and

the demurring party shall not be subject to default during the period of the extension." (Code Civ. Proc. § 430.41(a)(2).)

Code of Civil Procedure section 435.5(a) contains similar provisions governing the parties' obligation to meet and confer prior to filing a motion to strike, with a similar provision for an extension of the filing deadline if in good faith the parties are unable to meet and confer at least five days prior to the filing deadline. (Code Civ. Proc. § 435.5(a)(2).)

In support of the demurrer and motion to strike, General Motors filed the Kay Declaration in which counsel declares that he attempted to meet and confer with counsel for Plaintiff on August 21, 2025, by emailing and calling him on that date, but he was unable to reach Plaintiff's counsel. (Kay Decl. ¶ 2.) General Motors filed its demurrer and motion to strike with the Kay Declaration at approximately 4:39 p.m. the same date, August 21, 2025. The attempt to call counsel the same date the demurrer and motion to strike were due, and then filing the pleading challenges when the party is unable to reach the other party that same day, violates both the letter and spirit of the meet and confer requirement.

The attempt to meet and confer was untimely as performed on the same date the demurrer and motion to strike were due, not at least five days prior to the due date. Despite the untimely meet and confer attempt, the demurring party could have obtained an automatic 30-day extension of time by filing a declaration as provided in Code of Civil Procedure sections 430.41(b) and 435.5(b) so that a meaningful meet and confer could take place before the pleadings were formally challenged.

The continuance of the hearing will allow the parties to conduct the meet and confer they failed to hold or were unable to hold in accordance with Code of Civil Procedure sections 430.41(a) and 435.5(a).

14. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT**
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:
Please see Line 13 above.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO FORM**
INTERROGATORIES (SET THREE) AS AGAINST PLAINTIFF
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
Summary

This tentative ruling applies to lines 15, 16 and 17, which are the three discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center ("Defendant") against Plaintiff Lynetta Westbrook ("Plaintiff") calendared for hearing on